

		having decided a case against a claimant, might nevertheless forecast the reversal of its own decision on appeal.” Mix at 995-96 (emphasis added). This case does not fall within that exception. In connection with this motion, Defendant Burtin is awarded a total of \$9,222.95 (11.5 hrs at \$800/hr + \$22.95 costs) in reasonable attorneys’ fees and costs against Plaintiff HBC. (Code Civ. Proc., § 405.38.) This amount is to be paid to Burtin’s counsel within 30 days. Moving party to give notice.
109	Mendez vs. Progressive Insurance Company 25-01512485	1. Motion to Compel Arbitration 2. Joinder to Motion to Compel Arbitration 3. Order to Show Cause re: Dismissal for Failure to Proceed 4. Case Management Conference Defendant, Artisan and Truckers Casualty Company (erroneously sued as Progressive Insurance Company) (“Artisan”) moves for an order compelling arbitration of Plaintiff, Steven Mendez’s claim and staying this action pending completion of arbitration. The Motion to Compel Arbitration is GRANTED as to certain issues, as discussed below, the other claims against Artisan are stayed pending completion of arbitration, and the claims against co-Defendants, McNeil Tropp & Braun LLP and Jeff I. Braun are severed from the stay. Specifically, Artisan moves to compel arbitration of the issues of whether, and in what amount, Plaintiff is entitled to recover UIM damages and requests a stay as to Plaintiff’s other claims against Artisan pending completion of arbitration.

		Artisan has also filed arbitration after the instant motion to compel arbitration was filed; Plaintiff named Artisan and Truckers Casualty Company as Doe 1 and named Progressive Direct Insurance Company as Doe 2. Insurance Code section 11580.2(f) states, in part: “The policy or an endorsement added thereto [policy of bodily injury liability insurance covering liability arising out of the ownership, maintenance, or use of any motor vehicle] shall provide that the determination as to whether the insured shall be legally entitled to recover damages, and if so entitled, the amount thereof, shall be made by agreement between the insured and the insurer or, in the event of disagreement, by arbitration.” (Ins. Code § 11580.2(a)(1), (f).) The beneficiaries of this section “include the insurer and the insured, as well as “the court themselves, which are thereby freed from entertaining such litigation. [Citation.]” (Mercury Ins. Group v. Superior Court (1998) 19 Cal.4th 332, 341-342.) “Connected to the uninsured motorist coverage law is the contractual arbitration law, which appears at Code of Civil Procedure section 1280 et seq. This law is implicated because the uninsured motorist coverage law requires an automobile liability insurance policy, which is a contract [citation], to provide for arbitration. (Id. at p. 342.) “Section 11580.2 requires insurers to provide coverage for bodily injury or wrongful death caused by uninsured or underinsured motorists. [Citation.] Subdivision (f) of section 11580.2 requires language in an automobile policy that provides for arbitration of disputes:” (Tornai v. CSAA Insurance Exchange (2023) 98 Cal.App.5th 974, 984.) Under Code of Civil Procedure section 1281.2, the court may order a petitioner and respondent to arbitrate a controversy if the court determines that an agreement to arbitrate the controversy exists and “[o]n petition of a party to an arbitration agreement alleging the
--	--	---

	existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy.” (Code Civ. Proc. § 1281.2.) “ ‘ “California statutes create a ‘summary proceeding’ for resolving petitions or motions to compel arbitration. [Citation.] ‘The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. [Citation.] In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination.’ [Citation.]” [Citation.]’ [Citations.]” (Ramirez v. Charter Communications, Inc. (2024) 16 Cal.5th 478, 492.) “Federal and California law treat valid arbitration agreements like any other contract and favor their enforcement. [Citations.] The California Arbitration Act (Code Civ. Proc., § 1280 et seq.; CAA) expresses a ‘ “ ‘strong public policy in favor of arbitration as a speedy and relatively inexpensive means of dispute resolution.’ ” ’ [Citations.]” (Ibid.) “A written agreement to submit a controversy to arbitration is valid, enforceable, and irrevocable, ‘save upon such grounds as exist for the revocation of any contract.’ [Citation.] Unconscionability provides such grounds. [Citation.]” (Ibid.) Here, in accordance with Insurance Code section 11580.2(f), the subject Commercial Auto Policy that Artisan issued to ERA Transportation 608 (“Policy”) includes an Uninsured/Underinsured Motorist Coverage Endorsement which contains an arbitration provision as to “the legal liability of the operator or owner of an uninsured auto or underinsured auto; or the amount of damages sustained by the insured.” (Declaration of Nathaniel S.G. Braun (“Braun Decl.”)),
--	---

¶ 2, Ex. 1, Policy.) The Policy lists Plaintiff, Steven Mendez, as a rated driver. (Id. at p. 2.)

The parties do not dispute that the Policy contains an arbitration provision applicable to the underinsured-motorist (“UIM”) issue, namely, whether Plaintiff is entitled to recover UIM benefits, and if so, the amount of those benefits.

There is also no dispute that Plaintiff and Artisan have a disagreement over the entitlement to UIM damages, as well as the amount of damages, thereby triggering the arbitration provision contained in both the Policy and Insurance Code section 11580.2(f). The Complaint alleges that the Policy provided UIM coverage for the allegations in the Complaint and underlying action, and that Artisan breached the insurance contract and the implied covenant of good faith and fair dealing when it refused to pay Plaintiff the benefits under the Policy. (Complaint, ¶¶ 9-10, 12.) The Complaint asserts six causes of action: (1) Breach of Insurance Contract; (2) Breach of the Implied Covenant of Good Faith and Fair Dealing; (3) California Insurance Code § 790.03; (4) Violation of Business & Professions Code sections 17200/17500 [Unfair Business Practices]; (5) Unjust Enrichment; and (6) Fraud. Based on the foregoing, there is no dispute that Plaintiff’s UIM claim is subject to arbitration as an agreement to arbitrate the issues of whether Plaintiff is entitled to UIM damages, and if so, the amount of damages exists.

Plaintiff argues that the motion should be denied because: (1) Artisan has failed to file any responsive pleading and is subject to default; (2) substantial portions of Plaintiff’s claims are not subject to arbitration under California law; (3) co-defendant Jeff I. Braun has no right to arbitrate and has filed a demurrer, creating inconsistent procedural postures; (4) staying the action would cause unnecessary delay and prejudice to Plaintiff; and (5) the motion was filed for an improper purpose.

		Artisan is not required to file any responsive pleading and is not subject to default. Code of Civil Procedure section 1281.7 states, “[a] petition pursuant to Section 1281.2 may be filed in lieu of filing an answer to a complaint.” Plaintiff also does not show that the motion was filed for an improper purpose. As to Plaintiff’s other claims, Artisan does not seek to arbitrate those other claims but seeks to stay those claims pending completion of arbitration. The issue is whether a stay is appropriate (1) as to Plaintiff’s other claims against Artisan, and (2) as to Plaintiff’s claims against co-Defendants, McNeil Tropp & Braun LLP and Jeff I. Braun (collectively, the “Law Firm Defendants”). Plaintiff’s Other Claims Against Artisan An insurer’s contractual right to arbitrate the value of a UIM claim does not prevent an insured from filing suit for bad faith. (McIsaac v. Foremost Ins. Co. Grand Rapids, Michigan (2021) 64 Cal.App.5th 418, 423.) Code of Civil Procedure section 1281.4, states in part: “If a court of competent jurisdiction, whether in this State or not, has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies.” (Code Civ. Proc. § 1281.4.) It additionally states: “If the issue which is the controversy subject to arbitration is severable, the stay may be with respect to that issue only.” (Ibid.) “Any party to a judicial proceeding ‘is entitled to a stay of those proceedings whenever (1) the arbitration of a
--	--	---

controversy has been ordered, and (2) that controversy is also an issue involved in the pending judicial action.’ [Citation.] ‘The purpose of the statutory stay is to protect the jurisdiction of the arbitrator by preserving the status quo until arbitration is resolved.’ [Citation.] ‘In the absence of a stay, the continuation of the proceedings in the trial court disrupts the arbitration proceedings and can render them ineffective.’ [Citation.]” (Heritage Provider Network, Inc. v. Superior Court (2008) 158 Cal.App.4th 1146, 1152.) “A controversy can be a single question of law or fact, and a stay shall be issued upon proper motion if the court has ordered arbitration of a controversy that is also an issue involved in an action or proceeding pending before it. [Citation.]” (Id. at pp. 1152-1153.) “Thus, a single overlapping issue is sufficient to require imposition of a stay.” (Id. at p. 1153.)

Here, the outcome of the arbitration, which will determine whether Plaintiff is entitled to UIM damages, and if so, the amount of damages, will dictate the breach of contract and bad faith claims which are premised upon Artisan’s failure to pay Plaintiff’s UIM claim under the Policy (first and second cause of action). So too will it dictate Plaintiff’s third cause of action for Violation of Insurance Code section 790.03 which alleges that Artisan violated Section 790.03 “[b]y denying coverage,” as well as Plaintiff’s fourth cause of action cause of action for Violation of Business and Professions Code section 17200/17500, fifth cause of action for unjust enrichment, and sixth cause of action for fraud which are premised, in whole or in part, upon Plaintiff’s entitlement to UIM damages and Artisan’s failure to pay/denial of coverage of Plaintiff’s UIM claim. (Complaint, ¶¶ 8-12 [facts applicable to all causes of action], 32 [first cause of action], 39-41 [second cause of action], 51 [third cause of action], 54-56 [fourth cause of action], 65 [fifth cause of action], 67, 74-75 [sixth cause of action].) As such, the issue of Plaintiff’s entitlement to UIM benefits is an overlapping issue in all of Plaintiff’s

	causes of action asserted in the Complaint. In turn, the continuation of proceedings in the trial court as to Plaintiff’s causes of action could render the arbitration proceeding ineffective. Therefore, a stay is justified as to all claims asserted in Plaintiff’s Complaint against Artisan. In addition, a trial court has an inherent power to stay proceedings. “Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency. [Citations.]” (Freiberg v. City of Mission Viejo (1995) 33 Cal.App.4th 1484, 1489.) “ ‘[A] court ordinarily has inherent power, in its discretion, to stay proceedings when such a stay will accommodate the ends of justice.’ [Citation.]” (Oto L.L.C. v. Kho (2019) 8 Cal.5th 111, 141.) “As the court in Landis v. North American Co. (1936) 299 U.S. 248, 254, 57 S.Ct. 163, 81 L.ed.153 explained, ‘the power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants.’ ” (Ibid.) Plaintiff fails to demonstrate prejudice as a result of a delay from a stay on the causes of action asserted against Artisan. Lastly, Plaintiff’s claims against co-Defendants are not a basis to deny the motion to compel arbitration as to Plaintiff’s claims against Artisan, as the former claims may be severed from the stay, as discussed below. Based on the foregoing, the Court GRANTS Artisan’s motion to compel arbitration as to the issues of “the legal liability of the operator or owner of an uninsured auto or underinsured auto” and “the amount of damages sustained by the insured,” and to stay the action as to Artisan pending completion of arbitration. Plaintiff’s Claims Against Co-Defendants
--	---

		The Law Firm Defendants do not oppose arbitration but contend that they should not be subject to stay of any proceedings as a result of co-Defendant Artisan’s motion to compel arbitration. As noted above, “[a] single overlapping question of law or fact may qualify as a ‘controversy’ sufficient to require imposition of stay. [Citations.]” However, “[i]f the issue which is the controversy subject to arbitration is severable,’ the court has the discretion to sever and stay proceedings on the arbitrable claims and permit any non-arbitrable issues to proceed in court. [Citations.] The party seeking severance under Code of Civil Procedure section 1281.4 must prove its claim is independent of the arbitrable matter. [Citations.]” (Mattson Technology, Inc. v. Applied Materials, Inc. (2023) 96 Cal.App.5th 1149, 1161.) Here, there is no dispute that the Law Firm Defendants have no contract or agreement with Plaintiff, that the Law Firm Defendants are not a party to any arbitration agreement with Plaintiff, and that the Law Firm Defendants are not a party to Policy and are not bound by Insurance Code Section 11580.2. Plaintiff acknowledges that Plaintiff’s claims against the Law Firm Defendants “are not founded in or intertwined with the insurance contract,” and that they are “independent tort and statutory claims based on Mr. Braun’s conduct.” (ROA 86, Plaintiff’s Opposition, Section B.) As such, the claims against the Law Firm Defendants are independent from the issues subject to arbitration, set forth above, and Plaintiff’s claims against the Law Firm Defendants should be severed such that they are not subject to the stay under Code of Civil Procedure section 1281.4. Artisan to give notice.
110	Moslehi vs. County of Orange 24-01428581	Motion for Sanctions Plaintiff Arash Moslehi (“Plaintiff”), proceeding in pro per, moves for an order dismissing and prohibiting